

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

YSN IMPORTS INC. D/B/A/ FLAME KING, *Complainant*

v.

FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC.,
U SHIPPERS GROUP MANAGEMENT CO., INC., *Respondents.*

DOCKET NO. 21-02

Served: October 7, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER ON MOTIONS AND REVISED SCHEDULING ORDER

On August 13, 2021, the parties filed a joint status report with proposed schedule. On August 16, 2021, the parties’ proposed schedule was accepted and a scheduling order was issued. The scheduling order required, pursuant to the parties’ request, that responses to initial discovery requests be filed by October 1, 2021.

On October 1, 2021, Complainant filed a motion for protective order pending Respondents’ request for extension (“Protective Order Motion”), indicating that Respondents requested that Complainant consent to an extension of time to provide discovery responses and objections, and that Complainant had agreed to a ten-day extension. Protective Order Motion at 1-2.

On October 4, 2021, Respondents filed a motion to extend time to respond to discovery requests (“Motion”), indicating that there have “been very few work-days in the month of September” due to religious holidays and asserting that more than ten extra days is needed to produce responsive documents. Motion at 1. Respondents requested an additional three weeks and that responses be due on November 1, 2021. Motion at 2.

By email, the parties were advised to provide any responses to the motions by October 6, 2021. No responses were received.

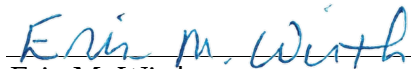
Respondents’ motion seeking an extension was not filed timely. Motions seeking extensions of deadlines should be filed as soon as practicable and in all cases, prior to the expiration of the deadline. Respondents also did not address in their motion the impact their request would have on other deadlines in the proceeding, as required by the Scheduling Order. Moreover, Respondents’ delay prompted Complainant to file a request for a protective order, a request that would not have been necessary if Respondents had timely filed their motion.

In August, when the parties filed their proposed schedule, they should have thoughtfully considered the requested deadlines and should have accounted for holidays and any reasonably foreseeable delays. Moreover, there is no reason that the requested extension should have been filed after the deadline. When the request was finally filed, it requested both a three-week extension and an extension to November 1, 2021, which is a one-month extension. In addition, it is clear that this requested extension will impact the other deadlines in this proceeding and additional time will be needed to review the delayed discovery responses.

At this point, an extension of the deadline requested and adjustment of the remaining discovery schedule is necessary. The parties are hereby ordered to provide thorough discovery responses by the deadlines below. Failure to provide discovery or to comply with deadlines in this proceeding may result in sanctions, including dismissal. *See Kawasaki Kisen Kaisha, Ltd., v. The Port Authority of New York and New Jersey*, Docket No. 11-12, 2014 FMC LEXIS 36 (FMC Nov. 20, 2014) (Commission affirmed ALJ's order dismissing proceeding for willful failure to provide discovery).

Accordingly, Respondents' motion for an extension is **GRANTED IN PART AND DENIED IN PART**. Complainant's motion for a protective order is **DISMISSED AS MOOT**. The parties are hereby **ORDERED** to comply with the following deadlines:

October 22, 2021	Responses or objections due for initial discovery requests.
November 22, 2021	Complete fact depositions.
December 7, 2021	Identify experts and provide expert reports.
December 14, 2021	Disclosure of rebuttal expert reports, if any.
December 27, 2021	All discovery completed.
January 25, 2022	Complainant files brief with proposed findings of fact and appendix.
February 22, 2022	Respondents file opposition brief with proposed findings of fact and responses to Complainant's proposed findings of fact, and appendix.
March 8, 2022	Complainant files reply brief with responses to Respondents' proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge